Issue checklist

Consti 1 midterm · run it in the margin of every problem · 22 minutes each: read twice 4, outline 4, write 11, check 3

Court and procedure

- **Actual case or ripeness.** A bill, draft IRR, proposal or mere threat is not ripe (Montesclaros; Lozano; PACU).
- **Mootness and its exceptions.** A supervening event ends the controversy; four exceptions (grave violation, exceptional character, guiding principles, capable of repetition yet evading review).
- **Standing.** Citizen, taxpayer, voter, legislator, association or third party, environmental; transcendental importance.
- **Remedy and forum.** Rule 65 in the SC versus RTC; COMELEC versus HRET/SET/PET; hierarchy of courts; COA for money claims.
- **Political question.** Textual commitment or full discretion; still reviewable for grave abuse under Art. VIII, Sec. 1.

Separation of powers

- **Encroachment on another branch.** Congress executing laws, the Executive legislating, or either intruding on the courts or independent bodies.
- **Legislative veto or post-enactment role.** Committee approval of rules, deputizing agencies, legislators identifying projects (ABAKADA; Belgica).
- **Adding qualifications to constitutional offices.** Congress cannot add to qualifications the Constitution fixes (SJS v. DDB); statutory offices differ.

Delegation

- **Completeness and sufficient standard.** The law must set the policy and the limits; no subdelegation to private parties (Vera; KMU).
- **IRR validity, publication and filing.** Authorized, within scope, proper procedure, reasonable; published (Tañada); filed with ONAR.

How the law was made

- **Title and one subject.** Germane to the title; no hodgepodge or surprise (Lidasan; Giron).
- **Origination in the House.** Appropriation, revenue and tariff bills, public debt, local and private bills; the bill, not the law, originates (Tolentino).
- **Riders and inappropriate provisions.** GAA provisions must relate to a particular appropriation (Sec. 25(2); Philconsa v. Enriquez).
- **Transfers, savings and augmentation.** Sec. 25(5) requisites; cross-border transfers; disguised transfers (Araullo; Macalintal 2023).
- **Lump sums, pork and the item veto.** Singular correspondence; post-enactment legislator discretion (Belgica 2013, 2019).
- **Taxation limits and exemptions.** Uniform and equitable; exemptions by majority of all Members, expressly (John Hay; Lung Center).

Congress internally

- **Discipline of members.** Two-thirds of all Members; suspension capped at 60 days; no conviction needed (Osmeña).
- **Quorum and attendance.** Majority; within the coercive jurisdiction (Avelino); the House compels its own members.
- **Arrest and speech privileges.** Arrest: up to 6 years, in session; speech: legislative acts only, not media (Jimenez; Jalosjos).
- **Incompatible and forbidden offices; salaries.** Forfeiture of seat; created or increased offices; salary increases after the full term (Liban; Adaza).
- **Electoral tribunals and the CA.** Proclamation + oath + assumption (Reyes); proportional representation (Guingona; Daza).
- **Party-list system.** Atong Paglaum parameters; Albano; nominee rules and substitution.
- **Districts, elections and vacancies.** Only Congress creates districts (Sema); population basis; special elections; election schedules.
- **Journal, enrolled bill and bicameral reports.** Enrolled bill conclusive; bicameral report approved by both Houses; urgency certification.

Inherent powers

- **Police power.** Lawful subject and lawful means; LGU ordinances must also be consistent with law.
- **Regulation or taking.** Appropriating property or its use for the public needs just compensation (Ericta; PPI v. TELEBAP).
- **Non-impairment of contracts and franchises.** Yields to a valid exercise of police power; franchises are never exclusive (Iloilo I).
- **State immunity and money claims.** Suit against the State? Consent? Jure imperii; claims go to COA.

People and territory

- **Natural-born or naturalized.** Election of citizenship; foundlings (David); naturalization by statute.
- **Dual citizenship and RA 9225.** Oath plus personal, sworn renunciation before filing the COC; dual citizenship versus dual allegiance.
- **Residence (domicile).** Physical presence plus intent to remain; abandonment of the old domicile.
- **Suffrage: qualifications versus registration.** Art. V qualifications cannot be added; registration rules valid if reasonable (Kabataan; Palatino; AKBAYAN).
- **Territory and maritime zones.** Art. I; archipelagic baselines (Magallona); arbitral award; immunity of foreign warships.

The Constitution itself

- **Amendment or revision.** Modes and votes under Art. XVII; initiative only for amendments (Lambino); Congress means both Houses.
- **Self-executing provisions.** Article II policies are generally not judicially enforceable (Manila Prince; Tañada v. Angara).
- **Equal protection and due process.** Reasonable classification; notice and hearing before a penalty.

Numbers

- **Senator / Representative age:** 35 / 25 on election day
- **Residence: Senator / Representative:** 2 years in the Philippines / 1 year in the district, immediately preceding election day
- **Terms and limits:** Senate 6 years, 2 consecutive terms; House 3 years, 3 consecutive terms
- **Party-list share:** 20% of the House including party-list; 2% for a guaranteed seat; maximum 3 seats per group
- **Suspension or expulsion of a Member:** Two-thirds of all Members; suspension at most 60 days
- **Privilege from arrest:** Offenses punishable by not more than 6 years, while Congress is in session
- **Quorum; Speaker or Senate President election:** Majority of each House; majority of all Members
- **Yeas and nays entered in the Journal:** On request of one-fifth of the Members present
- **Electoral Tribunal / Commission on Appointments:** 9 members (3 Justices + 6 legislators) / Senate President + 12 + 12; CA acts within 30 session days
- **Bills:** 3 readings on separate days; printed copies 3 days before passage, unless certified urgent
- **Veto override:** Two-thirds of all Members of each House; President has 30 days to veto
- **Tax exemption law:** Majority of all Members of Congress
- **Amendment: proposal:** Congress by three-fourths of all Members; convention called by two-thirds, or by majority submitting the question to voters; initiative by 12% of voters with 3% per district
- **Plebiscite:** 60 to 90 days after approval of the proposal (or after COMELEC certifies an initiative)
- **Voter registration:** No registration 120 days before a regular election, 90 days before a special election (RA 8189, Sec. 8)
- **Special election for a House vacancy:** 60 to 90 days after the vacancy, if it occurs at least one year before the term ends (RA 7166, Sec. 4)
- **Effectivity of laws and IRRs:** 15 days after publication in the Official Gazette or a newspaper of general circulation (EO 200), unless the law sets another date

Write it in CLEAR

- **C** Conclusion first (valid/void; Yes/No).
- **L** Rule + provision; a case only if you are sure (else 'in one case, the Court held…').
- **E** Exception only if one applies.
- **A** Apply to the exact words of the law or story.
- **R** Restate; it must agree with C.
- 80–120 words; all answers fit on the back of the questionnaire.
- Did you answer the question asked ('in his favor', 'no procedural issues')?

Exam room (5.0 if broken)

- Student ID number only; no name or other marks.
- Write at the back of the questionnaire; everything must fit.
- Pen and correction tape only; no devices; nothing else on the table.
- No talking or signals. Write legibly: unreadable = wrong.